

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 382 By: Bullard of the Senate
3 and
4 Stark of the House
5

6 An Act relating to schools; amending 70 O.S. 2021,
7 Section 1-114, as amended by Section 1, Chapter 258,
8 O.S.L. 2024 (70 O.S. Supp. 2024, Section 1-114),
9 which relates to the right to attend school;
10 requiring a child to be toilet trained prior to
11 enrolling in certain grade beginning in certain
12 school year; requiring a parent or legal guardian to
13 provide certain assurances on certain form; directing
14 the State Department of Education to create certain
15 process; defining term; providing contents of
16 process; providing exemption for certain students;
17 updating statutory language; providing an effective
18 date; and declaring an emergency.

13
14
15 AUTHOR: Remove Representative Stark as principal House author and
16 substitute with Representative Steagall.

17 Add as coauthor Representative Stark.

18 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
19 and insert:

20 "An Act relating to commercial driver licenses;
21 creating the Ray Davis Safe Roads Act; amending 47
22 O.S. 2021, Section 6-101, as last amended by Section
23 3, Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025,
24 Section 6-101), which relates to class requirements
for driver licenses; prohibiting the issuance of
commercial driver license to certain individuals;
amending 47 O.S. 2021, Section 6-103, as amended by
Section 40, Chapter 282, O.S.L. 2022 (47 O.S. Supp.

2025, Section 6-103), which relates to persons not to be licensed; prohibiting the issuance of commercial driver license to certain individuals; requiring Service Oklahoma make certain verification; modifying list of persons not to be licensed; providing for noncodification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Ray Davis Safe Roads Act".

SECTION 2. AMENDATORY 47 O.S. 2021, Section 6-101, as last amended by Section 3, Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025, Section 6-101), is amended to read as follows:

Section 6-101. A. No person, except those hereinafter expressly exempted in Sections 6-102 and 6-102.1 of this title, shall operate any motor vehicle upon a highway in this state unless the person has a valid Oklahoma driver license for the class of vehicle being operated under the provisions of this title. No person shall be permitted to possess more than one valid license at any time, except as provided in paragraph 4 5 of subsection F of this section.

B. 1. No person shall operate a Class A commercial motor vehicle unless the person is eighteen (18) years of age or older and holds a valid Class A commercial license, except as provided in paragraph 5 of this subsection and subsection F of this section.

1 Any person holding a valid Class A commercial license shall be
2 permitted to operate motor vehicles in Classes A, B, C and D, except
3 as provided for in paragraph 4 of this subsection.

4 2. No person shall operate a Class B commercial motor vehicle
5 unless the person is eighteen (18) years of age or older and holds a
6 valid Class B commercial license, except as provided in paragraph ~~5~~
7 6 of subsection F of this section. Any person holding a valid Class
8 B commercial license shall be permitted to operate motor vehicles in
9 Classes B, C and D, except as provided for in paragraph 4 of this
10 subsection.

11 3. No person shall operate a Class C commercial motor vehicle
12 unless the person is eighteen (18) years of age or older and holds a
13 valid Class C commercial license, except as provided in subsection F
14 of this section. Any person holding a valid Class C commercial
15 license shall be permitted to operate motor vehicles in Classes C
16 and D, except as provided for in paragraph 4 of this subsection.

17 4. No person under twenty-one (21) years of age shall be
18 licensed to operate any motor vehicle which is required to be
19 placarded for hazardous materials pursuant to 49 C.F.R., Part 172,
20 subpart F, except as provided in subsection F of this section;
21 provided, a person eighteen (18) years of age or older may be
22 licensed to operate a farm vehicle which is required to be placarded
23 for hazardous materials pursuant to 49 C.F.R., Part 172, subpart F,
24 except as provided in subsection F of this section.

1 5. A person at least seventeen (17) years of age who
2 successfully completes all examinations required by law may be
3 issued by Service Oklahoma:

4 a. a restricted Class A commercial license which shall
5 grant to the licensee the privilege to operate a Class
6 A or Class B commercial motor vehicle for harvest
7 purposes or a Class D motor vehicle, or

8 b. a restricted Class B commercial license which shall
9 grant to the licensee the privilege to operate a Class
10 B commercial motor vehicle for harvest purposes or a
11 Class D motor vehicle.

12 6. No person shall operate a Class D motor vehicle unless the
13 person is sixteen (16) years of age or older and holds a valid Class
14 D license, except as provided for in Section 6-102 or 6-105 of this
15 title. Any person holding a valid Class D license shall be
16 permitted to operate motor vehicles in Class D only.

17 C. Any person issued a driver license pursuant to this section
18 may exercise the privilege thereby granted upon all streets and
19 highways in this state.

20 D. No person shall operate a motorcycle or motor-driven cycle
21 without having a valid Class A, B, C or D license with a motorcycle
22 endorsement. Except as otherwise provided by law, any new applicant
23 for an original driver license shall be required to successfully
24 complete a written examination, vision examination and driving

1 examination for a motorcycle as prescribed by the Department of
2 Public Safety, in conjunction with Service Oklahoma, and a certified
3 state-approved motorcycle basic rider course approved by the
4 Department, in conjunction with Service Oklahoma, if the applicant
5 is seventeen (17) years of age or younger to be eligible for a
6 motorcycle endorsement thereon. The written examination and driving
7 examination for a motorcycle shall be waived by Service Oklahoma
8 upon verification that the person has successfully completed a
9 certified Motorcycle Safety Foundation rider course approved by the
10 Department, in conjunction with Service Oklahoma.

11 E. Except as otherwise provided by law, any person who lawfully
12 possesses a valid Oklahoma driver license which is eligible for
13 renewal shall be required to successfully complete a written
14 examination, vision examination and driving examination for a
15 motorcycle as prescribed by the Department, in conjunction with
16 Service Oklahoma, and a certified state-approved motorcycle basic
17 rider course approved by the Department, in conjunction with Service
18 Oklahoma, if the person is seventeen (17) years of age or younger to
19 be eligible for a motorcycle endorsement. The written examination
20 and driving examination for a motorcycle shall be waived by Service
21 Oklahoma upon verification that the person has successfully
22 completed a certified Motorcycle Safety Foundation rider course
23 approved by the Department, in conjunction with Service Oklahoma.

24

1 F. 1. Any person eighteen (18) years of age or older may apply
2 for a restricted Class A, B or C commercial learner permit. Service
3 Oklahoma, after the applicant has passed all parts of the
4 examination for a Class D license and has successfully passed all
5 parts of the examination for a Class A, B or C commercial license
6 other than the driving examination, may issue to the applicant a
7 commercial learner permit which shall entitle the person having
8 immediate lawful possession of the commercial learner permit and a
9 valid Oklahoma driver license or provisional driver license pursuant
10 to Section 6-212 of this title to operate a Class A, B or C
11 commercial motor vehicle upon the public highways solely for the
12 purpose of behind-the-wheel training in accordance with rules
13 promulgated by the Department.

14 2. This commercial learner permit shall be issued for a period
15 as provided in Section 6-115 of this title of one (1) year;
16 provided, such commercial learner permit may be suspended, revoked,
17 canceled, denied or disqualified at the discretion of the
18 Department, with notice to Service Oklahoma, for violation of the
19 restrictions, for failing to give the required or correct
20 information on the application or for violation of any traffic laws
21 of this state pertaining to the operation of a motor vehicle.
22 Except as otherwise provided, the lawful possessor of a commercial
23 learner permit who has been issued a commercial learner permit for a
24 minimum of fourteen (14) days may have the restriction requiring an

1 accompanying driver removed by satisfactorily completing a driver's
2 examination; provided, the removal of a restriction shall not
3 authorize the operation of a Class A, B or C commercial motor
4 vehicle if such operation is otherwise prohibited by law.

5 3. Service Oklahoma shall not issue an original Class A, B, or
6 C driver license to any applicant who is disqualified under
7 paragraph 5 of subsection A of Section 6-103 of this title.

8 4. No person shall apply for and Service Oklahoma shall not
9 issue an original Class A, B or C driver license until the person
10 has been issued a commercial learner permit and held the permit for
11 at least fourteen (14) days. Any person who currently holds a Class
12 B or C license and who wishes to apply for another class of
13 commercial driver license shall be required to apply for a
14 commercial learner permit and to hold the permit for at least
15 fourteen (14) days before applying for the Class A or B license, as
16 applicable. Any person who currently holds a Class A, B or C
17 license and who wishes to add an endorsement or remove a restriction
18 for which a skills examination is required shall be required to
19 apply for a commercial learner permit and to hold the permit for at
20 least fourteen (14) days before applying for the endorsement.

21 ~~4.~~ 5. A commercial learner permit shall be issued by Service
22 Oklahoma as a separate and unique document which shall be valid only
23 in conjunction with a valid Oklahoma driver license or provisional
24 driver license pursuant to Section 6-212 of this title, both of

1 which shall be in the possession of the person to whom they have
2 been issued whenever that person is operating a commercial motor
3 vehicle as provided in this subsection.

4 ~~5.~~ 6. After one renewal of a commercial learner permit, as
5 provided in paragraph 2 of this subsection, a commercial permit
6 shall not be renewed again. Any person who has held a commercial
7 learner permit for the initial issuance period and one renewal
8 period shall not be eligible for and Service Oklahoma shall not
9 issue another renewal of the permit; provided, the person may
10 reapply for a new commercial learner permit, as provided for in this
11 subsection.

12 G. 1. For purposes of this title:

13 a. "REAL ID Compliant Driver License" or "Identification
14 Card" means a driver license or identification card
15 issued by this state that has been certified by the
16 United States Department of Homeland Security (USDHS)
17 as compliant with the requirements of the REAL ID Act
18 of 2005, Public Law No. 109-13. A REAL ID Compliant
19 Driver License or Identification Card and the process
20 through which it is issued incorporate a variety of
21 security measures designed to protect the integrity
22 and trustworthiness of the license or card. A REAL ID
23 Compliant Driver License or Identification Card will
24

1 be clearly marked on the face indicating that it is a
2 compliant document, and

- 3 b. "REAL ID Noncompliant Driver License" or
4 "Identification Card" means a driver license or
5 identification card issued by this state that has not
6 been certified by the United States Department of
7 Homeland Security (USDHS) as being compliant with the
8 requirements of the REAL ID Act of 2005. A REAL ID
9 Noncompliant Driver License or Identification Card
10 will be clearly marked on the face indicating that it
11 is not compliant with the federal REAL ID Act of 2005
12 and is not acceptable for official federal purposes.
13 The driver license or identification card will have a
14 unique design or color indicator that clearly
15 distinguishes it from a compliant license or card.

16 2. Original Driver License and Identification Card Issuance:

- 17 a. Application for an original REAL ID Compliant or REAL
18 ID Noncompliant Driver License or Identification Card
19 shall be made to Service Oklahoma or a licensed
20 operator provided such licensed operator is authorized
21 to process application for REAL ID Compliant Driver
22 Licenses and Identification Cards. Application for a
23 REAL ID Noncompliant Driver License or Identification
24 Card shall be made to Service Oklahoma.

1 b. Service Oklahoma employees or authorized licensed
2 operators shall perform all document recognition and
3 other requirements needed for approval of an original
4 REAL ID Compliant Driver License or Identification
5 Card application. Service Oklahoma employees shall
6 perform all document recognition and other
7 requirements needed for approval of a REAL ID
8 Noncompliant Driver License or Identification Card
9 application.

10 c. Upon approval of an original REAL ID Compliant or REAL
11 ID Noncompliant Driver License or Identification Card
12 application, the applicant may take the approved
13 application document to a licensed operator to receive
14 a temporary driver license or identification card.

15 d. The licensed operator shall process the approved REAL
16 ID Compliant or REAL ID Noncompliant Driver License or
17 Identification Card application and upon payment shall
18 provide the applicant a temporary driver license or
19 identification card. A temporary driver license or
20 identification card shall afford the holder the
21 privileges otherwise granted by the specific class of
22 driver license or identification card for the period
23 of time listed on the temporary driver license or
24 identification card or the period of time prior to the

1 applicant receiving a REAL ID Compliant or REAL ID
2 Noncompliant Driver License or Identification Card,
3 whichever time period is shorter.

4 3. REAL ID Compliant Driver License and Identification Card
5 Renewal and Replacement:

- 6 a. Application for renewal or replacement of a REAL ID
7 Compliant Driver License or Identification Card may be
8 made to Service Oklahoma or to a licensed operator;
9 provided, such licensed operator is authorized to
10 process application for REAL ID Compliant Driver
11 Licenses and Identification Cards. A licensed
12 operator may process the voluntary downgrade of a REAL
13 ID Compliant Commercial Driver License to any lower
14 class license upon request of the licensee; provided,
15 no additional endorsements or restrictions are placed
16 on the license.
- 17 b. Service Oklahoma employees or authorized licensed
18 operators shall perform all document recognition and
19 other requirements needed for approval of a renewal or
20 replacement REAL ID Compliant Driver License or
21 Identification Card application.
- 22 c. Upon approval of a renewal or replacement REAL ID
23 Compliant Driver License or Identification Card
24 application, the applicant may receive a temporary

1 driver license or identification card from Service
2 Oklahoma or an authorized licensed operator.

3 d. A temporary driver license or identification card
4 acquired under the provisions of this paragraph shall
5 afford the holder the privileges otherwise granted by
6 the specific class of driver license or identification
7 card being renewed or replaced for the period of time
8 listed on the temporary driver license or
9 identification card or the period of time prior to the
10 applicant receiving a REAL ID Compliant Driver License
11 or Identification Card, whichever time period is
12 shorter.

13 e. For purposes of this title, an application for a REAL
14 ID Compliant Driver License or Identification Card by
15 an individual with a valid Oklahoma-issued driver
16 license or identification card shall be considered a
17 renewal of a REAL ID Compliant Driver License or
18 Identification Card.

19 4. REAL ID Noncompliant Driver License and Identification Card
20 Renewal and Replacement:

21 a. Application for renewal or replacement of a REAL ID
22 Noncompliant Driver License or Identification Card may
23 be made to Service Oklahoma or to a licensed operator.
24 A licensed operator may process the voluntary

1 downgrade of a REAL ID Noncompliant Commercial Driver
2 License to any lower class license upon request of the
3 licensee; provided, no additional endorsements or
4 restrictions are added to the license.

5 b. Service Oklahoma employees or licensed operators shall
6 perform all document recognition and other
7 requirements needed for approval of a renewal or
8 replacement REAL ID Noncompliant Driver License or
9 Identification Card application.

10 c. Upon approval of a renewal or replacement REAL ID
11 Noncompliant Driver License or Identification Card
12 application, the applicant may receive a temporary
13 driver license or identification card from Service
14 Oklahoma or a licensed operator.

15 d. A temporary driver license or identification card
16 acquired under the provisions of this paragraph shall
17 afford the holder the privileges otherwise granted by
18 the specific class of driver license or identification
19 card being renewed or replaced for the period of time
20 listed on the temporary driver license or
21 identification card or the period of time prior to the
22 applicant receiving a REAL ID Noncompliant Driver
23 License or Identification Card, whichever time period
24 is shorter.

H. 1. The fee charged for an approved application for an original Oklahoma REAL ID Compliant or REAL ID Noncompliant Driver License or an approved application for the addition of an endorsement to a current valid Oklahoma REAL ID Compliant or REAL ID Noncompliant Driver License shall be assessed in accordance with the following schedule:

Class A Commercial Learner

Permit	\$25.00
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Class A Commercial License	\$25.00
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Class B Commercial Learner

Permit	\$15.00
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Class B Commercial License	\$15.00
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Class C Commercial Learner

Permit	\$15.00
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Class C Commercial License	\$15.00
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Class D License	\$ 4.00
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Motorcycle Endorsement	\$ 4.00
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2. Notwithstanding the provisions of Section 1104 of this title, all monies collected from the fees charged for Class A, B and C commercial licenses pursuant to the provisions of this subsection shall be deposited in the General Revenue Fund of this state.

I. The fee charged for any failed examination shall be Four Dollars (\$4.00) for any license classification. Notwithstanding the provisions of Section 1104 of this title, all monies collected from

such examination fees pursuant to the provisions of this subsection shall be deposited in the General Revenue Fund of this state.

J. In addition to any fee charged pursuant to the provisions of subsection H of this section, the fee charged for the issuance or renewal of a REAL ID Noncompliant Driver License shall be in accordance with the following schedule; provided, that any applicant who has a CDL Learner Permit shall be charged only the replacement fee for the issuance of the license:

License Class	4-year	8-year
Class A Commercial Learner Permit	\$56.50	\$113.00
Class A Commercial License	\$56.50	\$113.00
Class B Commercial Learner Permit	\$56.50	\$113.00
Class B Commercial License	\$56.50	\$113.00
Class C Commercial Learner Permit	\$46.50	\$93.00
Class C Commercial License	\$46.50	\$93.00
Class D License	\$38.50	\$77.00

K. In addition to any fee charged pursuant to the provisions of subsection H of this section, the fee charged for the issuance or renewal of a REAL ID Compliant Driver License shall be in accordance with the following schedule; provided, that any applicant who has a

1 CDL Learner Permit shall be charged only the replacement fee for the
2 issuance of the license:

3	License Class	4-year	8-year
4	REAL ID Compliant Class A		
5	Commercial Learner Permit	\$56.50	\$113.00
6	REAL ID Compliant Class A		
7	Commercial License	\$56.50	\$113.00
8	REAL ID Compliant Class B		
9	Commercial Learner Permit	\$56.50	\$113.00
10	REAL ID Compliant Class B		
11	Commercial License	\$56.50	\$113.00
12	REAL ID Compliant Class C		
13	Commercial Learner Permit	\$46.50	\$93.00
14	REAL ID Compliant Class C		
15	Commercial License	\$46.50	\$93.00
16	REAL ID Compliant Class D		
17	License	\$38.50	\$77.00

18 L. A commercial learner permit may be renewed one time for a
19 period of one hundred eighty (180) days. The cost for the renewed
20 permit shall be the same as for the original permit.

21 M. Notwithstanding the provisions of Section 1104 of this
22 title, of each fee charged pursuant to the provisions of subsections
23 J, K and L of this section:

24

1 1. Five Dollars and fifty cents (\$5.50) of a 4-year license or
2 Eleven Dollars (\$11.00) of an 8-year license shall be deposited to
3 the Trauma Care Assistance Revolving Fund created in Section 1-
4 2530.9 of Title 63 of the Oklahoma Statutes;

5 2. Six Dollars and seventy-five cents (\$6.75) of a 4-year
6 license or Thirteen Dollars and fifty cents (\$13.50) of an 8-year
7 license shall be deposited to the Department of Public Safety
8 Computer Imaging System Revolving Fund to be used solely for the
9 purpose of administration and maintenance of the computerized
10 imaging system of the Department through October 31, 2022.

11 Beginning November 1, 2022, Six Dollars and seventy-five cents
12 (\$6.75) of a 4-year license or Thirteen Dollars and fifty cents
13 (\$13.50) of an 8-year license shall be deposited to the Service
14 Oklahoma Computer Imaging System Revolving Fund to be used solely
15 for the purpose of administration and maintenance of the
16 computerized imaging system of Service Oklahoma;

17 3. Ten Dollars (\$10.00) of a 4-year license or Twenty Dollars
18 (\$20.00) of an 8-year license shall be deposited to the Department
19 of Public Safety Revolving Fund for all original or renewal
20 issuances of licenses through October 31, 2022. Beginning November
21 1, 2022, Ten Dollars (\$10.00) of a 4-year license or Twenty Dollars
22 (\$20.00) of an 8-year license shall be deposited to the Service
23 Oklahoma Revolving Fund for all original or renewal issuances of
24 licenses; and

1 4. Five Dollars (\$5.00) of a 4-year license or Six Dollars
2 (\$6.00) of an 8-year license shall be deposited to the State Public
3 Safety Fund created in Section 2-147 of this title.

4 N. All original and renewal driver licenses shall expire as
5 provided in Section 6-115 of this title.

6 O. 1. Through May 31, 2025, any person sixty-two (62) to
7 sixty-four (64) years of age during the calendar year of issuance or
8 renewal of a Class D license or motorcycle endorsement shall be
9 charged the following prorated fee:

	4-year	8-year
11 Age 62	\$21.25	\$42.50
12 Age 63	\$17.50	\$35.00
13 Age 64	\$13.75	\$27.50

14 2. Any person sixty-five (65) years of age or older during the
15 calendar year of issuance or renewal of a Class D license or
16 motorcycle endorsement shall not be charged a fee.

17 P. No person who has been honorably discharged from active
18 service in any branch of the Armed Forces of the United States or
19 Oklahoma National Guard and who has been certified by the United
20 States Department of Veterans Affairs, its successor or the Armed
21 Forces of the United States to be a disabled veteran in receipt of
22 compensation at the one-hundred-percent rate for a permanent
23 disability sustained through military action or accident resulting
24 from disease contracted while in such active service and registered

1 with the veterans registry created by the Oklahoma Department of
2 Veterans Affairs shall be charged a fee for the issuance,
3 replacement or renewal of an Oklahoma driver license; provided, that
4 if a veteran has been previously exempt from a fee pursuant to this
5 subsection, no registration with the veterans registry shall be
6 required.

7 Q. In accordance with the provisions of subsection G of this
8 section, Service Oklahoma is authorized to promulgate rules for the
9 issuance and renewal of driver licenses authorized pursuant to the
10 provisions of Sections 6-101 through 6-309 of this title; provided,
11 that no such rules applicable to the issuance or renewal of REAL ID
12 Noncompliant Driver Licenses shall create more stringent standards
13 than such rules applicable as of January 1, 2017, unless directly
14 related to a specific change in statutory law concerning standards
15 for REAL ID Noncompliant Driver Licenses. Applications, upon forms
16 approved by Service Oklahoma, for such licenses shall be handled, in
17 accordance with the provisions of subsection G of this section, by
18 the licensed operator; provided, Service Oklahoma is authorized to
19 assume these duties in any county of this state. Each licensed
20 operator accepting applications for driver licenses shall receive
21 Six Dollars (\$6.00) for a 4-year REAL ID Noncompliant Driver License
22 or Twelve Dollars (\$12.00) for an 8-year REAL ID Noncompliant Driver
23 License or Ten Dollars (\$10.00) for a 4-year REAL ID Compliant
24 Driver License or Twenty Dollars (\$20.00) for an 8-year REAL ID

1 Compliant Driver License to be deducted from the total collected for
2 each license or renewal application accepted through June 30, 2023.
3 Beginning July 1, 2022, and ending on June 30, 2023, each motor
4 license agent or licensed operator accepting applications for driver
5 licenses for individuals over the age of sixty-five (65) years or
6 for applications for drivers pursuant to subsection P of this
7 section shall receive Six Dollars (\$6.00) for a 4-year driver
8 license or Twelve Dollars (\$12.00) for an 8-year driver license to
9 be deducted daily by the motor license agent or licensed operator
10 receipts. Beginning July 1, 2023, these fees shall be retained by
11 the licensed operator pursuant to subsection E of Section 1141.1 of
12 this title. The fees received by the licensed operator, authorized
13 by this subsection, shall be used for operating expenses. The
14 amount retained pursuant to this subsection shall not be retained by
15 any state agency. The fees received by the licensed operator,
16 authorized by this subsection, shall be used for operating expenses.
17 For purposes of this subsection, "licensed operator" shall mean an
18 individual who obtains a license from the Service Oklahoma Operator
19 Board to operate a designated Service Oklahoma location and offers
20 third-party fulfillment of designated services to be rendered by
21 Service Oklahoma.

22 R. Notwithstanding the provisions of Section 1104 of this title
23 and subsection Q of this section and except as provided in
24 subsections H and M of this section, the first Sixty Thousand

1 Dollars (\$60,000.00) of all monies collected pursuant to this
2 section shall be paid by the Oklahoma Tax Commission to the State
3 Treasurer to be deposited in the General Revenue Fund of the State
4 Treasury.

5 The next Five Hundred Thousand Dollars (\$500,000.00) of monies
6 collected pursuant to this section shall be paid by the Tax
7 Commission to the State Treasurer to be deposited each fiscal year
8 under the provisions of this section to the credit of the Department
9 of Public Safety Restricted Revolving Fund for the purpose of the
10 Oklahoma Law Enforcement Telecommunications System. All other
11 monies collected in excess of Five Hundred Sixty Thousand Dollars
12 (\$560,000.00) each fiscal year shall be apportioned as provided in
13 Section 1104 of this title, except as otherwise provided in this
14 section.

15 S. Service Oklahoma shall retain the images displayed on
16 licenses and identification cards issued pursuant to the provisions
17 of Sections 6-101 through 6-309 of this title which may be used
18 only:

19 1. By a law enforcement agency for purposes of criminal
20 investigations, missing person investigations or any law enforcement
21 purpose which is deemed necessary by the Commissioner of Public
22 Safety;

23 2. By the driver licensing agency of another state for its
24 official purpose; and

1 3. As provided in Section 2-110 of this title.

2 All agencies approved by the Oklahoma Law Enforcement
3 Telecommunications System (OLETS) or the National Law Enforcement
4 Telecommunications System (NLETS) to receive photographs or
5 computerized images may obtain them through OLETS or through NLETS.
6 Photographs or computerized images may be obtained by law
7 enforcement one inquiry at a time.

8 The computer system and related equipment acquired for this
9 purpose must conform to industry standards for interoperability and
10 open architecture. The Department of Public Safety may promulgate
11 rules to implement the provisions of this subsection.

12 T. No person may hold more than one state-issued or territory-
13 issued driver license or identification card from Oklahoma or any
14 other state or territory. Service Oklahoma shall not issue a driver
15 license to a person who has been previously issued a driver license
16 or identification card until such license or identification card has
17 been surrendered to Service Oklahoma by the applicant. Provided,
18 any person who holds both a driver license and identification card
19 from Oklahoma as of November 1, 2025, may continue to possess both
20 credentials until the first expiration of either credential. At
21 that time, the person shall be allowed to retain, replace, or renew
22 either the driver license or identification card and shall surrender
23 the second credential to Service Oklahoma. Service Oklahoma may
24

1 promulgate rules related to the issuance of replacement REAL ID
2 Compliant Driver Licenses in the event of loss or theft.

3 U. Beginning May 24, 2021, and ending on June 30, 2023, in
4 addition to the amounts provided in subsection Q of this section, a
5 licensed operator shall receive Five Dollars (\$5.00) for each
6 processed application for a REAL ID Compliant 4-year Driver License
7 and Ten Dollars (\$10.00) for each processed application for a REAL
8 ID Compliant 8-year Driver License. Any additional amounts provided
9 pursuant to this subsection shall not be retained by Service
10 Oklahoma.

11 SECTION 3. AMENDATORY 47 O.S. 2021, Section 6-103, as
12 amended by Section 40, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2025,
13 Section 6-103), is amended to read as follows:

14 Section 6-103. A. Except as otherwise provided by law, Service
15 Oklahoma shall not issue a driver license to:

16 1. Any person who is under eighteen (18) years of age, except
17 that Service Oklahoma may issue a Class D license to any person who
18 attains sixteen (16) years of age on or after August 15, 2000, and
19 meets the requirements of Sections 6-105 and 6-107.3 of this title;

20 2. Any unemancipated person who is under eighteen (18) years of
21 age and whose custodial legal parent or legal guardian does not
22 approve the issuance of a license as required by Section 6-110.2 of
23 this title or objects to the issuance of a license or permit by
24 filing an objection pursuant to Section 6-103.1 of this title;

1 3. Any person whose driving privilege has been suspended,
2 revoked, canceled or denied in this state or any other state or
3 country until the driving privilege has been reinstated by the state
4 or country withdrawing the privilege;

5 4. Any person who is classified as an excessive user of
6 alcohol, any other intoxicating substance, or a combination of
7 alcohol and any other intoxicating substance, and inimical to public
8 safety, in accordance with rules promulgated by the Department,
9 until all requirements granting or reinstating driving privileges
10 are met, including, but not limited to, abstinence from the use of
11 alcohol, any other intoxicating substance, or any combination of
12 alcohol and any other intoxicating substance for a minimum of either
13 twelve (12) months or eighteen (18) months, as determined by OAC
14 595:10-5, immediately preceding application for or application for
15 reinstatement of driving privileges;

16 5. Any applicant for a Class A, B, or C commercial driver
17 license whose name appears on the methamphetamine offender registry
18 maintained pursuant to Section 2-701 of Title 63 of the Oklahoma
19 Statutes. Prior to the issuance of a commercial driver license,
20 Service Oklahoma shall verify, via a data match or other appropriate
21 means, that the applicant is not on the registry;

22 6. Any person who is required by Section 6-101 et seq. of this
23 title to take an examination, unless the person shall have
24 successfully passed the examination;

1 ~~6.~~ 7. Any person who is required under the laws of this state
2 to deposit proof of financial responsibility and who has not
3 deposited such proof;

4 ~~7.~~ 8. Any person who is ~~physically deformed or who is~~ afflicted
5 with any mental disease or physical condition that would impair the
6 driving ability of the person or when the Commissioner of Public
7 Safety, from information concerning the person or from the records
8 and reports on file in the Department of Public Safety, determines
9 that the operation of a motor vehicle by such person on the highways
10 would be inimical to public safety or welfare;

11 ~~8.~~ 9. Any person who is a nonresident, as defined in Section 1-
12 137 of this title;

13 ~~9.~~ 10. Any alien unless such person presents valid
14 documentation of identity and authorization for presence in the
15 United States issued pursuant to the laws of the United States;
16 provided, no license shall be issued to any alien whose
17 documentation indicates the alien is a visitor or is not eligible to
18 establish residency; or

19 ~~10.~~ 11. Any person who possesses a valid license to operate a
20 motor vehicle issued by another state until the other state license
21 has been surrendered.

22 B. Any applicant who is denied a license under the provisions
23 of subsection A of this section shall have the right to an appeal as
24 provided in Section 6-211 of this title.

SECTION 4. This act shall become effective November 1, 2026."

Passed the House of Representatives the 7th day of May, 2026.

Presiding Officer of the House of
Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate

1 ENGROSSED SENATE
2 BILL NO. 382

By: Bullard of the Senate

3 and

4 Stark of the House

5
6 An Act relating to schools; amending 70 O.S. 2021,
7 Section 1-114, as amended by Section 1, Chapter 258,
8 O.S.L. 2024 (70 O.S. Supp. 2024, Section 1-114),
9 which relates to the right to attend school;
10 requiring a child to be toilet trained prior to
11 enrolling in certain grade beginning in certain
12 school year; requiring a parent or legal guardian to
13 provide certain assurances on certain form; directing
14 the State Department of Education to create certain
15 process; defining term; providing contents of
16 process; providing exemption for certain students;
17 updating statutory language; providing an effective
18 date; and declaring an emergency.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 5. AMENDATORY 70 O.S. 2021, Section 1-114, as
21 amended by Section 1, Chapter 258, O.S.L. 2024 (70 O.S. Supp. 2024,
22 Section 1-114), is amended to read as follows:

23 Section 1-114. A. All Except as provided for in subsection D
24 of this section, all children between the ages of five (5) years on
or before September 1 and twenty-one (21) years on or before
September 1 shall be entitled to attend school free of charge in the
district in which they reside.

1 B. ~~All~~ Except as provided for in subsection D of this section,
2 all children who are at least four (4) years of age but not more
3 than five (5) years of age on or before September 1 and who have not
4 attended a public school kindergarten shall be entitled to attend
5 half-day or full-day early childhood programs at any public school
6 in the state where such programs are offered; provided, no child
7 shall be required to attend any early childhood education program.
8 The following paragraphs shall govern early childhood programs:

9 1. ~~Children~~ Except as provided for in subsection D of this
10 section, children who are at least four (4) years of age but not
11 more than five (5) years of age on or before September 1 shall be
12 entitled to attend either half-day or full-day early childhood
13 programs in their district of residence free of charge as long as
14 the district has the physical facilities and teaching personnel to
15 accommodate the child. For purposes of calculation of State Aid,
16 children in an early childhood education program shall be included
17 in the average daily membership of the district providing the
18 program;

19 2. ~~A~~ Except as provided for in subsection D of this section, a
20 child who has not reached the age of five (5) years on or before
21 September 1 and who resides in a district which does not offer an
22 early childhood program shall be eligible for transfer to a district
23 where an early childhood program is offered if the district that
24 offers the early childhood program has the capacity to accept the

1 child as provided for in the Education Open Transfer Act. A
2 district offering early childhood programs may refuse to accept a
3 nonresident child if the district does not have the capacity to
4 accommodate the child in an early childhood education class, as
5 provided for in the Education Open Transfer Act. If the child
6 requesting the transfer has not reached the age of four (4) years on
7 or before September 1, the district may refuse to accept the
8 nonresident child if the district determines the child is not ready
9 for an early childhood program. Children who are accepted in a
10 program outside their district of residence as provided in this
11 paragraph shall be included in the average daily membership of the
12 district providing the program for State Aid funding subject to the
13 State Aid formula weight limitations set forth in paragraph 1 of
14 this subsection; and

15 3. The State Board of Education shall promulgate rules that
16 create exemptions relating to the maximum age at which a child may
17 attend half-day or full-day early childhood programs.

18 C. No child shall be enrolled in kindergarten unless he or she
19 will have reached the age of five (5) years on or before September 1
20 of the school year. No child shall be enrolled in the first grade
21 unless he or she will have reached the age of six (6) years on or
22 before September 1 of the school year.

23 D. 1. Beginning with the 2025-2026 school year, a child shall
24 be toilet trained prior to enrolling in prekindergarten. Upon

1 enrolling a child in the district in which he or she resides or
2 enrolling a child in a district to which he or she transferred in
3 accordance with the Education Open Transfer Act, a parent or legal
4 guardian of the child shall provide assurances that the child is
5 toilet trained on a form prescribed by the State Department of
6 Education.

7 2. The State Department of Education shall create a process for
8 school districts to follow upon determining that a student who
9 enrolls in prekindergarten is not toilet trained. For the purposes
10 of this section, "not toilet trained" means three or more documented
11 incidents of the child soiling or urinating himself or herself over
12 a four-week period. The process shall allow for a school district
13 to:

- 14 a. temporarily unenroll a child until he or she has been
15 toilet trained and provide for reintegration of the
16 child once he or she is toilet trained,
- 17 b. refer the child's parents or legal guardians to family
18 supports and resources to aid in toilet training, and
- 19 c. allow a parent or legal guardian or his or her
20 designee to aid in toilet training as needed.

21 3. A student who is incapable of being toilet trained prior to
22 enrolling in prekindergarten due to a disability that would be
23 recognized by an individualized education program (IEP) in
24 accordance with the Individuals with Disabilities Education Act

1 (IDEA) or a Section 504 Plan in accordance with the Rehabilitation
2 Act of 1973 shall be exempt from the provisions of this subsection.

3 E. 1. No nonresident and nontransferred pupil shall be allowed
4 to attend school in any school district unless a tuition fee equal
5 to the per capita cost of education for a similar period in such
6 district during the preceding year has been paid to the receiving
7 district in advance yearly or by semester as determined by the
8 district board of education of the receiving district. If the State
9 Board of Education discovers that the attendance has been allowed
10 without prior payment of the tuition fee in advance as required, no
11 further payment of any State Aid funds shall be made to the district
12 until the district has shown to the satisfaction of the State Board
13 of Education that all tuition fees have been paid or that the pupil
14 will no longer be allowed to attend school until the required
15 tuition fee has been paid.

16 2. The provisions of paragraph 1 of this subsection shall not
17 apply to a school district that enrolls nonresident students from a
18 contiguous, out-of-state school district if the district:

- 19 a. does not receive payment of any State Aid funds, and
20 b. has a per-pupil expenditure, as defined by Section 1-
21 124 of this title, that is above the state average
22 per-pupil expenditure.

23 A nonresident student whose resident district, as determined by
24 Section 1-113 of this title, is not within this state shall not be

1 eligible for State Aid. No local funding associated with the
2 nonresident student's out-of-state resident district shall be
3 allocated or transferred to the receiving school district.

4 ~~E.~~ F. Any parent, legal guardian, person, or institution having
5 care and custody of a child who pays ad valorem tax on real property
6 in any other school district other than that in which that person
7 resides may, with the approval of the receiving school district,
8 enroll the child in any school district in which ad valorem tax is
9 paid and receive a credit on the nonresident tuition fee equal to
10 the amount of the ad valorem tax paid for school district purposes
11 in the school district in which the child is enrolled. Provided,
12 the credit shall not exceed the total amount required for the
13 tuition payment.

14 SECTION 6. This act shall become effective July 1, 2025.

15 SECTION 7. It being immediately necessary for the preservation
16 of the public peace, health, or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

1 Passed the Senate the 27th day of March, 2025.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2025.

7
8 _____
9 Presiding Officer of the House
10 of Representatives